IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI

COURT-V

Item No.-104
CA (CAA) No. - 55/230/232/ND/2021

IN THE MATTER OF:
Amrit Gold Intrade Pvt Ltd And OMA Pvt Ltd **....Applicant**

SECTION
U/s 230-232 **Order delivered on 11.05.2021**

CORAM:
SHRI ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (JUDICIAL)

SHRI K.K. VOHRA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Abhishek Nahta, PCA & Adv Rishabh Sachdeva
For the Respondent :

ORDER

This is the first motion application filed by the petitioners. On perusal of the prayer, we notice that the petitioner has prayed for dispensation with the requirement of convening meetings of equity shareholders of the Transferor Company and the Transferee Company as well as dispensation with the requirement of convening meetings of secured and unsecured creditors of the Transferor Company and the Transferee Company.

There is a difference of opinion among the Members of this Bench on this issue and the matter has already been referred to the larger bench and same has not been decided as yet.

So, considering this, we are not inclined to take up this matter at this stage. List the matter on **19.07.2021.**

However, the petitioners are at liberty to take appropriate steps to get this matter transferred to another bench.

Sd/-

(K.K. VOHRA)
MEMBER (T)

Sd/-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

Rakhi